

SENATE No. 1005

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act for Chapter 40B reform and improvement.

PETITION OF:

NAME:

Vincent Dixon

DISTRICT/ADDRESS:

60 Lake St Apt N Winchester MA 01890

SENATE No. 1005

By Mr. Lewis (by request), a petition (accompanied by bill, Senate, No. 1005) of Vincent Dixon, for legislation for Chapter 40B reform and improvement. Housing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 885 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act for Chapter 40B reform and improvement.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION I. The Massachusetts General Laws are hereby amended by inserting the
2 following new chapter:

3 Chapter 40B Reform And Improvement (Providing for Important Environmental Impact
4 Review, by local municipal bodies, and other appropriate adjustments).

5 SECTION II – PURPOSE

6 Chapter 40B provisions of the Massachusetts General Laws, have proven to be
7 controversial, and needing adjustments, and reform. This legislation is designed to provide such
8 appropriate reforms, and needed adjustments, while recognizing that various public policy
9 concerns, including affordable housing needs remain, and need to be provided for.

SECTION III – REQUIRED ENVIRONMENTAL REVIEW – AND STANDARDS

1.) All projects qualifying under Chapter 40B provisions, must still be reviewed, and qualified by local municipal authorities, in regards to environmental impact, and Environmental Impact Review reporting (EIR). No Chapter 40B project, may be exempted from environmental review, and approval by the local municipality, in which it would be created, and constructed.

2.) All Chapter 40B projects, must conform to any conservation land, wetland, and watershed protections; and approval of such projects, must include review by municipal conservation commissions.

3.) Other relevant government bodies, including regional commissions, and housing authorities, shall review any such projects.

4.) Comprehensive state planning, and coordination, must be referenced in terms of these projects; including issues of neighborhood, and community-friendly developers; high-quality lasting construction standards; and relevant modest, to medium intensity, regional transit options.